



Appeal Decision

Site visit made on 14 July 2026

by Caroline Skelly BA (Hons) MSc MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 17 August 2026

Appeal Ref A: 6009775

Footpath outside 297 Pentonville Road, London WC1X 8PX

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
- The appeal is made by Verity Cheyne of BT Group Plc against the decision of the Council of the London Borough of Camden.
- The application Ref is 2025/5873/P.
- The development proposed is Installation of New BT Street Hub and associated display of advertisement panels to both sides of the unit.

Appeal B Ref: 6009777

Footpath outside of 297 Pentonville Road, London WC1X 8PX

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a refusal to grant express consent.
- The appeal is made by Verity Cheyne of BT Group Plc against the decision of the Council of the London Borough of Camden.
- The application Ref is 2026/0198/A.
- The advertisement proposed is display of advertisement panels on either side of a street hub unit.

Decision

1. Appeal A is dismissed.
2. Appeal B is dismissed.

Preliminary Matters

3. There are two appeals on this site. Appeal A relates to the refusal of planning permission for the provision of a new BT street hub. Appeal B is in respect of the refusal of advertisement consent for advertisement panels on each side of a street hub unit. The hub and the advertisement are integral to each other, and both are the subject of these appeals. I have dealt with each case on its individual merits, but to avoid duplication both proposals are considered together in this decision, unless otherwise indicated.
4. The appeal site is located in a section of pavement which adjoins 295 and 297 Pentonville Road¹ which is Grade II listed and lies within the Kings Cross/St Pancras Conservation Area. Accordingly in respect of Appeals A and B, I have had regard to the duties set out in Section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (LBCAA) which requires that, with regard to buildings or land in a conservation area, special regard is paid to the desirability of preserving or enhancing the character or appearance of the conservation area. In respect of Appeal A I have also had regard to s66 (1) of the LBCAA which requires

¹ List entry 113191

that, in considering whether to grant planning permission for development which affects a listed building, or its setting, special regard shall be had to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses.

5. In respect of Appeal B, Regulation 17 of the Town and Country Planning (Control of Advertisements (England) Regulations 2007 and the National Planning Policy Framework (the Framework), make it clear that advertisements are subject to control only in the interests of amenity and public safety. Factors relevant to amenity include the general characteristics of the locality, including the presence of any features of historic, architectural or similar interest.
6. Concurrent appeals have also been submitted for similar schemes outside 366 Gray's Inn Road and outside the Standard Hotel. Whilst I am the same Inspector for these appeals, I have considered each scheme independently.

Main Issues

7. For Appeal A, the main issues are:
 - the effect of the proposal on the character and appearance of the area, including whether it would preserve or enhance the significance of the Kings Cross /St Pancras Conservation Area and nearby listed buildings through development within their settings;
 - whether the proposal would achieve an appropriate level of community safety at the locality; and
 - the effect of the proposal on pedestrian safety.
8. For Appeal B, the main issue is the effect of the advertisements on the visual amenity of the area

Reasons

Character and Appearance (Appeals A and B)

9. The appeal site is located to the side of 297 Pentonville Road which forms a triangular block of shops and offices located between Gray's Inn Road, Pentonville Road and Kings Cross Bridge. The adjoining shopfront has been modernised, with full height glazing and is currently used as a Five Guys restaurant. This section of pavement includes a BT phone kiosk with paper advertisements, which would be replaced by the proposed hub, a streetlamp, signage and further towards the pedestrian crossing there are traffic lights. The surrounding area comprises commercial uses at ground floor level with a range of fascia signage and colours, however there are no existing free-standing adverts in this section of pavement.
10. The appeal site is located within the CA, the significance of which primarily derives from its architectural and historic interest, characterised by the prominent views of the two stations along Pentonville Road and the area's function as a gateway to central London. The proposed hub would be located to the side of 283-297 Pentonville Road (the Lighthouse Building), a Grade II Listed Building the significance of which is historical and architectural with its "lighthouse" structure on the roof forming an important local landmark. The appeal site also falls within views towards the Grade I listed St Pancras Station and the Former Midland

Grand Hotel² and Kings Cross Station³, their significance of which is architectural and historic.

11. The proposed BT hub would be positioned approximately 0.5m from Pentonville Road, in proximity to where the pavement narrows due to a delivery lay by. Whilst there are streetlamps and signage in the immediate area, they have slim profiles and are simple in design. In contrast the scale of the proposed hub and associated advertisements would appear visually intrusive in a narrow stretch of pavement lacking in standalone advertisements or bus shelters. Whilst I note that the height of the proposed hub is required from an ICNIRP perspective and would replace an existing BT kiosk, which has a larger footprint, the proposed hub would be wider and more prominent in views along the street and contribute towards the visual clutter of the street scene.
12. Notwithstanding that the proposed luminance levels would accord with industry recommendations, the digital advertisement screens would further intensify its visual impact due to the size of the advertisements, the internal illumination and moving images. Furthermore, the proposed placement close to the road edge would erode the views along Pentonville Road towards the Grade I listed St Pancras Station and Former Midland Hotel and Kings Cross Stations thereby detracting from their setting and the significance of the CA. Accordingly, the proposals would be harmful to the amenity of the area, would not preserve or enhance the character or appearance of the conservation area, nor preserve the setting of the listed buildings.
13. The appellant has referred me to the advertisements on bus shelters which are located to the front of Kings Cross Station and whilst these are close to the appeal site, they are clustered around the busy station hub, whereas the appeal site is in a different section of pavement which is free from such development. I have also been referred to appeals for similar proposals in urban areas⁴. However, I have not been provided with the full details of these cases and therefore cannot be certain that the circumstances are directly comparable to the appeal case. In any event I have considered the appeal on its own merits based on the evidence before me.
14. In relation to Appeal A, I find that the proposal would result in unacceptable harm to the setting of the listed buildings and the character and appearance of the CA. I find the harm to be less than substantial in this instance, and at the lower end of the spectrum, but nevertheless of considerable importance and weight. Paragraph 215 of the National Planning Policy Framework (the Framework) states that where harm is identified to the significance of designated heritage assets and their setting, it should be weighed against the public benefits of the proposal.
15. The proposal is part of a rollout of street hubs which would help to deliver a comprehensive network of connectivity across the Council area. The proposed hub would provide ultrafast public and encrypted Wi-Fi, improved 4G and 5G coverage to local communities, be powered 100% by renewable carbon free energy, provide free phone calls, have a direct 999 call button, display community and emergency awareness messaging and would include sensors to measure air quality noise and traffic. Whilst I acknowledge these benefits, they occupy only a small part of the

² List entry 1342037

³ List entry 1078328

⁴ APP/J2373/H/22/3304942, APP/J2373/W/22/3304943, APP/K5030/H/18/3211267, APP/K5030/W/22/3301224, APP/K5030/H/22/3301225, APP/L5240/W/21/3285398, APP/L5240/H/21/3285399, APP/C3105/W/25/3366449, APP/C3105/H/25/3366450, 6003955, 6003956, 6003952, 6003954, APP/D1835/W/25/3376719, APP/D1835/H/25/3376686

structure, with the dominant element being the advertisements. Moreover, I have not been provided with any evidence that these benefits could not be provided in a way which does not result in the harm I have identified. Therefore, taken together, the public benefits before me are not sufficient to outweigh the less than substantial harm to the CA and setting of the listed building.

16. I conclude that, on balance, appeal A would harm the character and appearance of the area and fail to preserve and enhance the significance of the Kings Cross /St Pancras Conservation Area and nearby listed buildings through development within their settings. Appeal A would fail to satisfy the requirements of the LBCAA, and paragraph 212 of the Framework and conflicts with Policies D1 and D2 of the Camden Local Plan 2017, which amongst other things seeks high-quality design that integrates well with surrounding streets and protects Camden's historic environment.
17. With regard to Appeal B, for the above reasons, I conclude that the proposed advertisements would result in unacceptable harm to the visual amenity of the area.

Community safety (Appeal A)

18. Policy C5 of the Camden Local Plan seeks to make Camden a safer place through requiring developments to demonstrate that they incorporate design principles which contribute to community safety and security particularly in wards with relatively high levels of crime and promote the development of pedestrian friendly spaces.
19. The Metropolitan Police states that the proposals fall within the policing ward of Kings Cross, where offences of note include drugs, vehicle crime, robbery and burglary. Although it is not specific to the appeal site itself, evidence has been submitted that shows that the surrounding area experiences high levels of drug and gang activity. These activities include increased instances of loitering, as well as usage of the free calls facility to coordinate drug deals. The Council also states that it has experienced anti-social behaviour from existing BT link panels and residents have reported an increase in anti-social behaviour and crime as a direct result of the installation of the kiosks.
20. The proposed hub would be larger in scale than the existing structure, providing a larger physical barrier within the pavement which would provide opportunity for concealment, increasing the risk of potential phone theft. Furthermore, whilst it would replace an existing BT kiosk it would introduce a range of features which the Metropolitan Police have identified have led to increased criminal activity in the area. Therefore, in the lack of any compelling evidence to the contrary, I cannot be satisfied that the proposed hub would not lead to increased criminal activity.
21. The appellant contends that hubs can contribute to community safety through improved lighting, passive surveillance and emergency call functioning. The appellant has also referred me to a case study in Camden where community messaging, included as part of the proposal has resulted in the reduction of crime in the borough, in particular item snatching, however no detailed figures have been provided and this is not reflected in the concerns raised by the Metropolitan police. The Anti-Social Behaviour Management Plan recognises that hubs have resulted in the misuse of the free call services for drug dealing and that BT have worked with the police in developing call restriction capabilities. However, I have no

evidence that this has successfully addressed this issue. Moreover, the Anti-Social Behaviour Management Plan does not demonstrate how the site-specific concerns relating to risks of increased phone theft and drug related criminal activity would be addressed. Therefore, given the lack of any compelling evidence to the contrary, I cannot be satisfied that the proposed hub would not lead to increased criminal activity.

22. The appellant has also referred me to appeals⁵ for similar development elsewhere in urban areas, however I have not been provided with the full details of these cases and therefore cannot be certain that they have directly comparable site characteristics, levels and types of criminal activity as the appeal site. Therefore, in the absence of appropriate mitigation the proposal would fail to reduce and could perpetuate the conditions that support opportunism crime.
23. Based on the evidence before me I conclude that the proposal fails to provide an appropriate level of community safety at the locality. It is therefore contrary to Policy C5 of the LP which amongst other things seeks to ensure the safer streets and public areas and promote the development of pedestrian friendly spaces.

Highway safety (Appeals A and B)

24. Policy T1 of the LP requires development to improve the pedestrian environment by supporting high-quality public realm improvement works. There is an existing BT phone kiosk, a streetlamp and road sign within this stretch of pavement. The proposed hub would project further into the pavement area than the existing BT phone kiosk, reducing the width of the pavement to approximately 3.2m, which would meet the recommended guidance of 3m set out in the Camden Streetscape Design Manual.
25. The Council have also referred to the guidance set out in Appendix B of the Pedestrian Comfort Guidance for London (Transport for London) which indicates that footways in high flow areas should be at least 5.3m wide with a minimum effective footway width of 3.3m. However, this relates to areas of high pedestrian flow of greater than 1,200 people per hour. I have not been provided with any evidence of footfall and therefore whilst I acknowledge it is a busy area I cannot be certain that it would meet the threshold for high flow of pedestrians. I observed that the kerb line is setback in proximity to the appeal site due to a layby, thereby narrowing the width of the pavement to approximately 2.97m. Whilst the proposed hub would encroach further into the pavement, as the pedestrian flow narrows due to the layby, I do not consider that the proposed hub would materially alter the pedestrian flow line in comparison to the existing situation.
26. Therefore, the proposal would not result in unacceptable harm to pedestrian safety and does not conflict with Policies G1, A1, C6 and T1 of the LP which seek amongst other things to avoid hindering pedestrian movement and unnecessary clutter and ensure footpaths and pavements are wide enough for the number of people expected to use them.

⁵ APP/X5210/W/22/3297263, 6003065, 6003067, 6002333, APP/X5210/Z/25/3376613, 6002191, 3376537

Other Matters

27. In light of my findings on the main issues, it is unnecessary to consider the need for a maintenance arrangement by way of a S106 legal agreement, as it would not be determinative.

Conclusion

28. In respect of Appeal A, the proposal would be detrimental to the character and appearance of the area, would harm the significance of the CA and the setting of nearby listed buildings and would not achieve an appropriate level of community safety at the locality. There are no considerations including the public benefits identified of sufficient weight to outweigh the conflict with the development plan.
29. I conclude that in respect of Appeal B that the proposed advertisements would be harmful to visual amenity.
30. For the reasons given above, I conclude that both appeals should be dismissed.

C Skelly

INSPECTOR